

Amendment No. 1 to SB0373

Massey
Signature of Sponsor

AMEND Senate Bill No. 373

House Bill No. 352*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 54, Chapter 5, Part 1, is amended by adding the following as a new section:

If the commissioner seeks to exercise any power of condemnation by eminent domain that the department has under law for the purpose of acquiring any lands or estates, or interests therein, for a right-of-way, then the commissioner shall include in any petition or other complaint seeking the condemnation, or in an amendment to the petition or complaint, a complete and accurate metes and bounds description of that portion of the owner's lands, estate, or interests therein, and a clear and precise description of the property rights, sought to be condemned. A lawful taking or appropriation, by order of possession of, or transfer of title to, the lands or estates or interests therein must not occur until after a petition or amendment meeting the requirements of this section has been filed and served upon the owner. The determination of the date of lawful taking or appropriation and calculation of the compensation to which the owner is entitled to be paid in the condemnation proceeding must take into consideration the date on which the petition or amendment was served pursuant to this section and the description provided in the petition or amendment.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.